SD-9

DoW Guidance On Participation in the Development and Use of Non-Government Standards



DEFENSE STANDARDIZATION PROGRAM OFFICE

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Foreword

Congress passed the *National Technology Transfer and Advancement Act of 1995* to promote the commercialization of technology and industrial innovation. The Act requires all federal agencies and departments to use technical standards that are developed or adopted by voluntary consensus standards bodies, unless such use is impractical or inconsistent with law. To implement this Act, the Office of Management and Budget updated Circular A-119, *Federal Participation in the Development and Use of Voluntary Consensus Standards and in Conformity Assessment Activities*. The Circular reiterates the preference for the use of non-government standards and provides guidance to promote consistent application of the Act across federal agencies and departments. The circular also provides policy guidance on the use of conformity assessment in procurement, regulatory, and program activities.

It is Department of War (DoW) policy to participate in the development of non-government standards (NGSs) and to adopt and use them to the extent feasible, practical, and economical. DoDM 4120.24, *Defense Standardization Program (DSP) Procedures*, requires that DoW first consider using an existing NGS or support revising or developing an NGS to meet DoW needs, in preference to using military or federal documents whenever feasible and consistent with law and regulation.

The use of NGSs supports the DoW commercial acquisition goals, conserves DoW resources, supports the U.S. industrial base, allows for dual-use technology, and improves DoW's mobilization capabilities.

In recent years, dramatic changes brought on by acquisition reform, the growing number of consortia standards, the emphasis in industry for global standards to support global markets and expanded development and use of third-party certification and qualification have raised questions about DoW participation in the development and use of NGSs. This document provides elaboration and clarification of DoW's NGS policies and procedures and addresses the most commonly asked questions.

This version of the SD-9 replaces the version published in August 2018. Recommended changes to this document should be addressed to the Defense Standardization Program Office, 8725 John J. Kingman Road, Stop 5100, Fort Belvoir, VA 22060-6220, or e-mailed to DSPO-Director@dla.mil.



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Section 1. Background

1.1 Purpose

This document provides information to help DoW effectively use NGSs and participate in NGS development. To achieve this purpose, this document covers the following topics:

- The different types of NGSs and the organizations that develop them,
- General guidance and practices relative to DoW's involvement in developing or using NGSs,
- Criteria that should be considered regarding requirements and verification before developing an NGS or replacing an existing military or federal document with an NGS,
- The roles and responsibilities of DoW personnel when participating in NGS activities, and
- The meaning of DoW adoption of an NGS and its importance.

This document provides guidance to three key stakeholders:

- DoW participants (and their management), so that they may have a more thorough understanding of non-government standards bodies (NGSBs), and their roles and responsibilities as participants in NGSB activities.
- NGSBs, so that they might better understand DoW's practices and policies, especially related to the DoW NGS adoption process. NGSBs will gain understanding of the Defense Standardization Program (DSP) and learn how to interface with DoW to develop, adopt, and use NGSs.
- Defense industry and individual firms involved in standards development activities, so that they may consider the DoW market in their application of research and development (R&D) investment and the development of dual-use products.

1.2 History

On July 1, 1952, Congress passed the *Defense Cataloging and Standardization Act* (Title 10 U.S.C. § 2451–2456). This law is the legislative basis for the DSP. The DSP has promoted NGS adoption since 1962, when it brought the first 12 NGS documents into the system. Since then, the DSP has worked closely with NGSBs to help shape and use their documents where applicable to military purposes.

Military systems and equipment have long used both NGSs and commercial components, when appropriate. The DSP focus sharpened in the 1990s when MilSpec Reform reemphasized DoW's use of commercial standards for acquisition. As a result of MilSpec Reform, DoW adopted several thousand NGSs and superseded military documents with performance specifications, commercial item descriptions (CIDs), or guidance handbooks.

1.3 Federal Policy

Unlike most foreign governments, the U.S. government neither operates nor finances a national standards body. Yet, the government, with the strong support of the private sector, is an important player in the standards process as a user, regulator, and contributor. The U.S. government is concerned that the process for developing standards be transparent, fair, and effective for all concerned and that it represents U.S. interests effectively.

Public Law 104-113, *The National Technology Transfer and Advancement Act of 1995 (NTTAA)*, and Office of Management and Budget (OMB), Circular A-119, *Federal Participation in the Development and Use of Voluntary Consensus Standards and in Conformity Assessment Activities (2016)*, direct federal

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agencies to use voluntary standards in lieu of governmental standards whenever feasible. The legislation asks agencies to promote participation by their personnel in standards development to ensure the standards created are usable by both federal agencies and the private sector.

OMB Circular A-119 contains three goals:

- Eliminate the cost of the federal government developing its own standards and decrease the cost of goods procured and the burden of complying with agency regulation.
- Provide incentives and opportunities to establish standards that serve national needs, encourage long-term growth for U.S. enterprises, and promote efficiency, economic competition, and trade.

Further the reliance on private-sector expertise to supply the federal government with cost-efficient goods and services.

The NTTAA designates the National Institute of Standards and Technology (NIST) to coordinate the efforts of the agencies to meet statutory requirements and to report annually on federal use of standards.[1]

1.4 DoW Policy

DoW policy for NGS participation and use and the procedures for adoption are in Department of Defense Instruction 4120.24, *Defense Standardization Program (DSP)*, and DoDM 4120.24, *Defense Standardization Program (DSP) Procedures*. It is DoW policy to use NGSs and to participate in NGSBs to better access and integrate with commercially developed technologies and products. The Department gives preference to performance standards (when they satisfy requirements) in lieu of prescriptive standards. Guidance for the development of performance standards is contained in SD-15, *Performance Specification Guide*.

The Department is committed to increased defense contractor productivity and improved acquisition efficiency. Standardization documents play an important role in this context and must be selected and properly applied with this objective in mind. Within this acquisition environment, using NGSs produces the following benefits:

- Conserves DoW resources
- Reduces DoW document development and maintenance cost
- Supports the U.S. industrial base
- Allows for dual-use technology
- Expedites DoW access to information about new industry developments
- Improves DoW mobilization capabilities.

Using NGSs frees scarce DoW resources for use on other priorities. DoW use of an NGS may consist of directly using the NGS document in acquisition, referencing the NGS in a government document, or reproducing portions of the NGS in a government document, with NGSB permission.

The Department is not the only beneficiary when it uses NGSs. The NGSBs also benefit from DoW adoption and use of their documents. DoW's scientists and engineers, many of whom are leaders in their fields, offer valuable contributions through their participation in NGS development. Adoption by DoW broadens the use of an NGS directly through defense contacts and indirectly through the added visibility provided by its inclusion in ASSIST. ASSIST is a robust, comprehensive web site used to access and manage documents developed and adopted by DoW.

[1] For more information about NIST, NTTAA, and OMB Circular A-119, visit the website www.standards.gov.

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The benefit to DoW and to the nation is the leveraging that occurs when experts from laboratories, manufacturers, users, academia, consumers, and others come together to cooperatively apply their knowledge. The result is usually a better standard than anyone could have produced alone.

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Section 2. Non-Government Standards Environment

2.1 What Is a Standard?

While the Department and some other organizations distinguish between standards and specifications, most organizations use the term “standard” in a generic way to refer to a wide variety of technical documents intended to establish common solutions to repetitive requirements. OMB Circular A-119 defines a standard as “common and repeated use of rules, conditions, guidelines, or characteristics for products or related processes and production methods and for related management systems practices.” According to OMB, a standard can be a “definition of terms; classification of components; delineation of procedures; specification of dimensions, materials, performance, designs, or operations; measurement of quality or quantity in describing materials, processes, products, systems, services, or practices; test methods and sampling procedures; or descriptions of fit and measurements of size or strength.” The Circular indicates a standard can include “terminology, symbols, packaging, marking or labeling requirements as they apply to a product, process, or production method. The term ‘standard’ does not include professional standards of personal conduct or institutional codes of ethics.”

2.2 What Is a Voluntary Consensus Standard?

Voluntary consensus standards are developed or adopted by domestic and international NGSBs. According to OMB Circular A-119, “these bodies often have intellectual property rights (IPR) policies that include provisions requiring the owners of relevant patented technology incorporated into a standard make that intellectual property available to implementers of the standard on a nondiscriminatory and royalty-free or reasonable royalty basis to all interested parties (and to bind subsequent owners of standards essential patents to the same terms).” In order to be considered a voluntary consensus standard, the Circular stipulates a “standard that includes patented technology needs to be governed by such policies, which should be easily accessible, set out clear rules governing the disclosure and licensing of relevant intellectual property, and take into account the interests of all stakeholders, including the intellectual property holder and those seeking to implement the standard.”

While the term “voluntary consensus standard” is widely used among standards developing organizations, industry, and government, the term has caused confusion and even created some resistance to their use. The term “voluntary” means the decision to use it is voluntary and it is voluntarily developed. However, once a voluntary consensus standard is placed on contract, cited as a requirement, or required by law or regulation, compliance is mandatory, not voluntary. Even the term “consensus” has led to the misperception that 100 percent agreement is required before a standard is approved. OMB Circular A-119 defines consensus “as general agreement, but not necessarily unanimity. During the development of consensus, comments and objections are considered using fair, impartial, open, and transparent processes.”

2.3 What Is a Non-Governmental Standard?

DoDM 4120.24 defines a non-government standard as “a national or international standardization document developed by a private sector association, organization, or technical society that plans, develops, establishes, or coordinates standards, specifications, handbooks, or related documents. The term does not include standards from individual companies.” An NGSB is defined by DoDM 4120.24 as “a private sector association, organization, or technical society that plans, develops, establishes, maintains, or coordinates NGSs.” NGSBs may include professional, scientific, and engineering societies; dedicated

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standards bodies; trade associations; consortia; and international standards bodies. The Department prefers to use the term “non-government standard” instead of voluntary consensus standard, partly to avoid the confusion noted above, but also because it is a broader term which includes consortia standards. Industry consortia standards are NGSs and may be adopted by DoW.

2.4 What Is a Consortia Standard?

Consortia standards are developed by companies or organizations which share similar strategic standardization goals, need to develop standards quickly to meet market demand, or are trying to harmonize or differentiate requirements in a specific industry. In 1990, there were comparatively few consortia standards; however, as time progresses, thousands more documents are being created, particularly in the information technology area.

There is discussion in some federal agencies concerning the permissibility of using consortia standards and whether OMB Circular A-119 authorizes their use. The Circular indicates that in cases where voluntary consensus standards do not exist or using these standards would be inconsistent with law, would not effectively meet agency requirements, or would in some way be impractical to use, the use of other standards including consortia standards is permitted.

The Circular recommends “that the agency consider allowing the use of other standards as alternative means for complying with agency regulatory, procurement, or program requirements that incorporate voluntary consensus standards, where such other standards are also found to be suitable under the agency’s analysis.”

2.5 Standards Development Principles

To some extent, most standards, including those in government, are developed following certain principles. The following principles are important to DoW in defining NGS development.

- **Openness.** Participation is open on a non-discriminatory basis to all people directly and materially affected without unreasonable financial barriers. Voting membership on the standards body is usually not unreasonably restricted by technical qualifications or other requirements. The procedures or processes for participating in standards development and for developing the standards are transparent.
- **Lack of dominance.** Dominance means a position of authority, leadership, or influence which excludes the fair and equitable consideration of other viewpoints. No single interest category, individual, or organization dominates the standards development process.
- **Balance.** The standard development process has a fair and representative diversity of interests. Specifically, there should be meaningful involvement from a broad range of parties. NGSBs seek participants with diverse interests.
- **Due process.** Due process includes documented and publicly available policies and procedures, adequate notice of meetings and standards development, sufficient time to review drafts and prepare written views and objections of all participants, access to views and objections of other participants, and a fair and impartial process for resolving conflicting views.
- **Written procedures.** Written procedures govern the methods used for standards development and are available to any interested person.
- **Appeals process.** Written procedures contain an identifiable, realistic, and readily available appeals mechanism for the impartial handling of procedural complaints. The NGSB addresses appeals promptly and makes decisions expeditiously. Appeals procedures provide for participation by all parties without imposing undue burden on them. Consideration of appeals is fair and unbiased and fully addresses the concerns expressed.

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- **Consensus.** Consensus is defined as general agreement, but not necessarily unanimity. During the development of consensus, comments and objections are considered using fair, impartial, open, and transparent processes.

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Section 3. Non-Government Standards Bodies

3.1 Types of Non-Government Standards Bodies

Non-government standards bodies are private-sector associations, organizations, or technical societies that plan, develop, establish, or coordinate NGSs. There are many different types pf NGSBs. The membership, voting, standards development process, and funding models vary from NGSB to NGSB. These variations are often reflected in the way these organizations produce standards. Some organizations develop standards only for a very narrow application by their members, some develop standards intended for a specific geographical area, some develop standards for the global market, and some develop standards in an area of interest to their members.

Most of these organizations operate by some form of consensus process, which typically requires a defined degree of openness, balance, due process, general agreement, participation of interested parties, and a formal process for attempting to resolve differences of opinion. The process of developing standards is usually governed by written procedures covering each step of the process. Some organizations such as consortia and trade associations typically are more restrictive, may not allow certain kinds of representatives to participate, and may not permit all participants to vote. Some developers such as ASTM International are founded specifically to develop standards and allow participation from any interested party without qualification, have strict rules concerning balance of different types of participants (users, producers, general interest), and have rigorous due process requirements for standards development, voting, and appeal.

While the processes used by NGSBs may vary, the standards produced by each method have benefits, and most importantly, meet the needs of their constituents. It has not been demonstrated that any one form of standard development produces an inherently superior standard. The Department uses standards that meet its needs, irrespective of the standards development process.

NGSBs provide the infrastructure for preparing standards. In the standards development process, government personnel participate in NGSB activities along with representatives from industry, academia, other organizations, and individual consumers. NGSBs are private-sector organizations operating under their own rules; the U.S. Government is simply one of several stakeholders and participants in their processes.

The NTTAA and OMB Circular A-119 encourage the participation of federal representatives in NGSBs to increase the likelihood the standards they develop will meet both public- and private-sector needs. Government agencies, manufacturers, consumers, buyers, retailers, testing laboratories, technical experts, and other interested parties (including individuals) from the United States and many other countries participate in the system.

3.2 Trade Associations

Trade associations are comprised of manufacturers, suppliers, customers, service providers, and other firms active in a given community. These associations deal with mutual business interests and promote industry products. The Aerospace Industries Association (AIA), the American Petroleum Institute (API), and the National Electrical Manufacturers Association (NEMA) are examples of trade associations.

To address their objectives, many trade associations develop standards for the products manufactured by their members or products used by their industries. Since a trade association exists to support its membership, and the industry or “trade” it represents, government participation in the standards development activities of a trade association may be restricted because the government is not a member

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of the association. However, standards development activities in trade associations are often conducted in accordance with due process, openness, and balance procedures which give government representatives an equal voice, and many, if not most, standards writing trade associations are accredited by the American National Standards Institute (ANSI). While it is preferable that government representatives have this equal voice, participation may well be beneficial to the government even under more restrictive circumstances.

3.3 Professional Societies

Professional societies are individual membership organizations. For example, the American Society of Mechanical Engineers (ASME International) and the Institute of Electrical and Electronics Engineers (IEEE) are societies that support the practice and advancement of a particular profession. Several professional societies, particularly those organizations in the engineering disciplines, develop technical standards.

Participants in standards committees usually serve as individual professionals, rather than as representatives of their organizations. As a practical matter, individuals who participate at the expense of their organization may be expected to reflect the interests of their organization, irrespective of the society's official position. In accordance with OMB Circular A-119, when a government agency is funding participation, the government employee or support contractor must participate as a representative of their agency, and not as an individual. Generally, professional societies promote the interests of their professionals. A society of a specific kind of engineer may help advance a field of engineering, continue the education and professional development of those engineers, and support development of new engineers entering that field.

Many professional society standards writing organizations are accredited by ANSI as operating in full compliance to openness, due process, balance, and transparency.

3.4 Testing and Laboratory Organizations

Some organizations, such as Underwriters Laboratories (UL), may provide services such as testing products to their standards or to other standards. The standards these organizations develop generally focus on the area of expertise of the organization; for example, UL is predominantly dedicated to safety, so most of their standards focus on the safety of products. Often, in both the standard and the testing, they focus only on the safety aspects with little or no attention to product function or performance. However, these organizations may also develop standards that do cover product attributes, function, and performance. The user needs to be aware of the purpose of the standard and then use it appropriately. Government participation may or may not be invited in the development of standards by such organizations. When possible, DoW activities may find it beneficial to be involved in such standards development work and should seek to be involved as a full participant.

3.5 Industry Consortia

Companies or organizations which share similar strategic standardization goals need to develop standards quickly to meet market demand or are trying to harmonize or differentiate requirements in a specific industry sometimes form consortia to develop standards outside of traditional standards bodies. In some cases, the standards are published by the consortia and for the consortia; in other cases, the group may seek wider acceptance by introducing the standards into a more conventional process through partnership with an NGSB. Consortia clearly act in the best business interests of their members. Sometimes those interests coincide with DoW interests or, at least, are not in opposition to DoW interests. The Department uses many consortia-developed standards, when it is appropriate and may be beneficial for DoW to participate in document development.

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The Object Management Group (OMG) is an example of a consortium. OMG is an international open membership, not-for-profit technology standards consortium. OMG was founded in 1989 by eleven companies with its initial focus to create a heterogeneous object standard. OMG task forces develop enterprise integration standards for a wide range of technologies and industries. OMG modeling standards enable visual design, execution, and maintenance of software and other processes. Originally aimed at standardizing distributed object-oriented systems, the organization now focuses on modeling (programs, systems, and business processes) and model-based standards.

Because there are so many consortia, each with its own set of rules, it is impossible to generalize about their standards development process. Potential government participants must work with individual consortia when participation might be beneficial to determine its membership, participation, voting, and standards availability rules and determine on a case-by-case basis whether participation would be beneficial and would not violate any government laws or regulations concerning conflicts of interest or antitrust issues.

3.6 American National Standards Institute

ANSI is a private, not-for-profit organization that administers and coordinates the U.S. standards and conformity assessment system. Its mission is to “enhance both the global competitiveness of U.S. business and the U.S. quality of life by promoting and facilitating voluntary consensus standards and conformity assessment systems and safeguarding their integrity.” Unlike many nations, the U.S. does not have a single government agency or government appointed national standards body to serve as the U.S. member body to the International Organization for Standardization (ISO) or the International Electrotechnical Commission (IEC). Instead, the U.S. Government recognizes ANSI as the U.S. member body to ISO and IEC.

ANSI *does not* develop standards. ANSI establishes standards-setting criteria based on openness, balance, due process, and consensus agreement by materially affected parties and then accredits standards developers that adhere to these criteria. Only standards submitted to ANSI by an accredited standards developer and then approved by ANSI may be designated as an American National Standard. These documents are identified with distinct ANSI markings which indicate the standards are the product of the accredited standards community.

Perhaps the best way to categorize ANSI is as a federation of NGSBs, companies, government agencies, academia, consumer interests, labor groups, and others who work together in defining the policies and procedures to accredit U.S. standards developers and conformity assessment systems and to ensure the integrity of the U.S. voluntary consensus standards system. DoW participation in ANSI activities is generally at a policy level working on boards, committees, councils, and forums that plan and oversee standards coordination and development work.

3.7 Non-U.S. Standards Organizations

So far in this section, NGSBs have been categorized primarily by the types of memberships they serve, such as trade associations or professional societies. Another way to categorize NGSBs is by their geographic participation and sphere of use. For example, national standards organizations are ones that generally limit participation to citizens within a country or whose standards are usually only used within that country. The U.S. leads the world in the number and variety of national standards organizations, but most countries in the world have at least one national standards organization.

There are also regional standards organizations that develop standards for use by countries within a defined geographic region, usually for the purpose of facilitating trade among neighboring countries. Such organizations may be largely restricted to a continent, such as the European Committee for

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Standardization (CEN). Other organizations are hemispheric, such as the Pan American Standards Commission (COPANT), while other organizations cut across continents and oceans, such as the Pacific Area Standards Congress (PASC).

As a matter of policy, the Department has no restrictions on the use of non-U.S. national or regional standards. There are examples of when DoW cites non-U.S. national or regional standards as requirements. For the most part, this action is done for interoperability reasons, but in some cases, there is no corresponding U.S. or international standard to describe the requirement. As a practical matter, DoW does not generally use non-U.S. national standards or regional standards because our technical personnel are not familiar with them, the standards are not always readily available, and DoW personnel usually do not have an opportunity to participate directly or indirectly in developing the standards.

3.8 International Standards Organizations

Defining what constitutes an international standard and the organizations that produce them is not a simple matter. Under the World Trade Organization (WTO) Agreement on Technical Barriers to Trade, many national governments and many global companies state a preference for international standards thus the definition is more than an academic exercise. Being designated as an international standard has important trade, regulatory, and global competitiveness implications, thus the definition has become both contentious and confusing.

Some people contend that the only private sector international standards organizations are ISO and IEC since they are the only organizations where each country is represented by its national standards organization. However, there are many other international standards organizations. The International Commission on Illumination (CIE) has produced global lighting standards for over 90 years, and DoW uses their standards. The Internet Engineering Task Force (IETF) is an international organization with many participants from around the world that sets the standards for the Internet. The International Air Transport Association (IATA) develops standards for most of the airlines in the world, as well as those industries which service the airlines. IATA also has as part of its mission to develop standards to support aviation policies of the world's governments, and again, DoW does use some of their standards.

DoW participates in all these international bodies in different ways, depending on the structure and operating procedures. For example, DoW has technical experts who participate on the Technical Advisory Groups established by ANSI to develop a U.S. position on standards activities and ballots for the appropriate technical committees of ISO and IEC. In the case of the CIE, DoW experts participate, and even chair some standards divisions, on the U.S. National Committee, which represents the U.S. position in the international forum. The IETF is open to all participants.

While international trade associations such as IATA restrict voting participation to its industry members, DoW personnel are occasionally invited to participate as technical experts or customers in some of the standards discussions.

There are also several international organizations created under the auspices of the United Nations (UN) which produce standards, including the International Telecommunication Union (ITU), the International Civil Aviation Organization (ICAO), the International Atomic Energy Agency (IAEA), the International Maritime Organization (IMO), the World Health Organization (WHO), and the Food and Agriculture Organization (FAO). For the most part, these organizations would be considered more government standards developers than NGSBs since they are UN-chartered organizations that require official government representation for "official" positions on standards. But all these organizations rely heavily on private-sector expertise in the development of their regulatory standards and, in some cases, even provide a forum for the development of private-sector voluntary standards. For example, ITU has many private-sector members contribute to the development of mandatory standards and develop international voluntary standards for the telecommunications industry. In the case of UN-chartered organizations, the

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designated U.S. government agency coordinates the U.S. position on a standard with DoW as well as any other affected government agencies. Depending on the subject matter of the standard, the DoW position may be the one that decides the U.S. position in the international forum.

> For DoW, the designation of a standard as international, global, regional, national, or local is not of critical importance. What is important to DoW is that any standard used meets the operational requirement; is technically accurate, current, adequate, and available; and preferably is developed in an open forum that allows for broad participation and is widely recognized and used.

Adding to the confusion on what constitutes an international standard and an international standards developer are “international standardization agreements” generated by military treaty alliance organizations such as the North Atlantic Treaty Organization (NATO); the American, British, Canadian, Australian, and New Zealand armies; and the Air Force Interoperability Council (AFIC). Since these standards are developed by and for the military organizations of the U.S. and its allies, they more appropriately fall under the heading of multinational treaty organization standards and not international standards.

In recent years, several standards organizations that originated as national standards organizations have changed their names to reflect their international membership and global use of their standards. Some examples include ASME International, ASTM International, National Fire Protection Association (NFPA) International, and SAE International. DoW uses and participates in the development of all these standards.

In an effort to resolve the debate over what constitutes an international standard, the WTO established criteria, which essentially state that a standard may be considered international if the membership in the developing organization is open to at least all the members of the WTO. In addition, the standards must be developed following procedures to ensure transparency, openness, impartiality, consensus, effectiveness, relevance, and coherence and to address the concerns of developing countries. The WTO criteria have not ended the debate for what constitutes an international standard, but it has provided a framework for discussion. The geographic origins and designations of a standard may have important implications in regulations and trade.

DoW personnel are encouraged to participate in NGS technical committees to promote standards that meet DoW needs. DoW personnel who participate in the activities of NGSBs at government expense do so as official DoW or agency representatives. If DoW representation at an NGSB meeting is not possible, DoW personnel may participate through a variety of suitable means, such as face-to-face discussion, virtual representation, teleconference, and email or letter correspondence. Participation in NGSBs does not necessarily connote DoW agreement with, or endorsement of, decisions reached by such organizations, or that DoW will eventually adopt the NGS.

DoW participation in the development of NGSs has many benefits, including the following:

- Ensuring DoW interests are met, by influencing the content of standards
- Representing defense “customer” interests in standards
- Promoting DoW interoperability interests
- Helping DoW stay abreast of new technologies
- Expediting DoW access to information about new industry developments
- Gaining insight into new market directions and future market trend
- Learning from both manufacturers and end users.

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By being involved with NGSBs, DoW can communicate information about military needs early in the NGS development cycle. Today, more than ever, the ability to influence standards that support transitioning technology into defense products is of paramount importance.

DoW participates in standards work for the same reasons that other government agencies and businesses do. Standards help any enterprise work more efficiently and serve its customers better. Businesses participate in the standards process to influence the evolution of standards, participate in defining “prudent practices” for their business sector, and acquire early knowledge of developments in their field. DoW has similar interests, particularly in the information technology world.

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Section 4. DoW Participation in Non-Government Standards Bodies

4.1 Guidance for DoW Representatives to Non-Government Standards Bodies

Representatives involved in NGSB activities should participate actively and on an equal basis with other members, consistent with the procedures of those bodies, particularly in matters such as establishing priorities; developing procedures for preparing, reviewing, and approving standards; and developing or adopting new standards.

The number of individual DoW participants in a given NGS development activity should be kept to the minimum required for effective representation of program, technical, or other concerns. In some cases, one person with sufficient technical expertise and product knowledge may participate; in other cases, DoW may have several representatives.

DoW representatives should participate actively in NGS committees, being fully involved in discussions and technical debates, registering opinions, and, if selected, serving as chairpersons or in other official capacities. However, DoW and OMB ethics policies distinguish between technical and managerial leadership in private-sector organizations. Technical activities such as serving as a project editor or as a committee chairperson are permissible. Managerial assignments including approving budgets, making financial decisions, or engaging in other “business” activities of the standards group should be declined.

When participating, one of the primary concerns DoW personnel need to be mindful of is the unauthorized disclosure of sensitive information (e.g., controlled unclassified information (CUI) or classified information) to foreign entities. Participating in international standards bodies, which by their nature involve collaboration with foreign nationals and governments, increases the risk of unauthorized disclosure. It’s crucial to ensure that any sensitive information shared is done so in accordance with U.S. laws and regulations.

Another concern when DoW personnel participate in International Standards bodies is influence and geopolitical maneuvering. Understanding various tactics that can be used to gather sensitive information that could threaten U.S, national security is an important consideration. This may be observed in the development of standards in support of critical and emerging technologies, in which the U.S. and DoW have a vested interest.

DoW personnel should be cognizant of potential threat vectors in NGSB activities that may cause potential harm. Some of these tactics may include:

- Use of elicitation techniques to ascertain system vulnerabilities
- Domination by foreign actors in NGSB activities to align with their national strategic objectives by:
  - Obtaining leadership positions
  - Undermining proposal recommendations

Imparting undue influence

While participation in international standards bodies is crucial for technological advancement and global trade, it presents significant challenges in protecting sensitive information. DoW personnel must be diligent in their compliance with all regulations and ensure the proper handling and safeguarding of sensitive information.

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4.2 Criteria for Participation

It is not always necessary for DoW to have active participation in NGS committees. If a product, process, or technology covered by an NGS is suitably stable, meets DoW requirements, is not used in critical applications, and is unlikely to see dramatic changes in industry, DoW participation may not be necessary. However, DoW should participate in NGS development working groups when one or more of the following criteria are met:

- DoW has a significant interest in the practices, processes, or products covered by the document.
- DoW has requirements the NGS must accommodate to be usable by DoW activities.
- The practices, processes, or products covered by the document are used in critical applications.
- It's important to be involved in the area to stay informed about new technical developments and to influence the direction of standards early in the process.

4.3 General Responsibilities

Lead Standardization Activities and Adopting Activities have two primary responsibilities related to NGSs.

4.3.1 Lead Standardization Activity

The Lead Standardization Activity (LSA) is responsible for managing DoW standardization efforts in its assigned area of responsibility. The LSA performs the following actions:

- Assigns standardization projects for adopting NGS.
- Seeks appropriate DoW representation on NGSB technical committees where DoW participation is necessary.

Works with NGSBs to address future DoW standards needs and seeks to establish committees in areas not adequately covered by existing groups.

The SD-1, *Standardization Directory*, available via the ASSIST database, identifies an LSA for each federal supply group, federal supply class, and standardization area.

4.3.2 Adopting Activity

When an LSA approves a project to adopt an NGS, or when DoW adopts an NGS, the Adopting Activity becomes the official DoW technical focal point for that NGS. The Adopting Activity performs the following actions:

- Represents DoW on all technical matters related to the NGS.
- Participates in the development of the NGS.
- Solicits input from other interested DoW activities during the draft stages of the NGS.
- Requests a standardization project number using the ASSIST Project module. The Adopting Activity should notify the LSA and Custodians a project to adopt an NGS has been initiated.
- Identifies DoW Custodians and review activities that have an interest in the NGS.
- Reviews and forwards drafts of the NGS to appropriate DoW activities for comment as a part of the normal coordination of the drafts by the NGSB. Reviews of drafts may be done under engineering practice studies.
- Reviews the comments and submits a consolidated DoW position to the NGS technical committee. Reviews the draft NGS and determines if it should be classified as Tier I, a document so important that adoption must be reevaluated with each revision to the NGS, or Tier II, a document not required to be reevaluated with each revision to the NGS.

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- Adopts the approved NGS if it meets DoW requirements.

4.4 Participants' Responsibilities

DoW participation in NGS activities includes assuming a variety of responsibilities. The following are responsibilities DoW personnel should consider before participating in NGSB activities:

- Know the NGSB.
  - Participants must become familiar with the purpose, organization, structure, and operating procedures of the NGSB. In addition, because it may be relevant to later agency deliberations about the use of the standard or other document, participants should determine whether the committee 1) is balanced, 2) follows agreed-on procedures (including transparency and due process), 3) maintains openness, and 4) operates by consensus. ANSI accreditation is one indication that the NGSB follows these procedures.
  - Participants in standards committees should review the purpose and scope of each activity and should seek clarification of any ambiguities.
  - Participants should also be aware that restrictions of competition through the use or abuse of standards procedures is improper and violates various federal and state antitrust statues; such violations are subject to civil and criminal prosecution.
- Follow protocols and procedures.
  - Participants must know the rules by which the group operates.
  - Participants should have a thorough knowledge of the NGSB's standards development processes, policies, and drafting guidelines including those regarding domination of proceedings. DoW participants must avoid the practice or the appearance of undue influence relating to DoW representation and activities in NGSBs.
- Know DoW policies.
  - Participants must become familiar with, and be prepared to articulate, DoW positions on major policy issues relating to the entire lifecycle of acquisition, from selecting standards, specifications, and requirements, to acquisition and logistics.
  - When representing a DoW activity, DoW participants should avoid expressing personal opinions on significant policy issues, because others may construe participants' personal opinions to be official positions.
- Present the official position.
  - DoW personnel who participate as liaisons in the activities of NGSBs at the government expense must do so as official department or agency representatives. These participants represent the official DoW position, even if it is at odds with personal views. Similarly, participants representing the United States in an international group must support the national position.
- Ensure DoW needs are accommodated.
  - Participants should make DoW requirements known to the standards writing committee, subcommittee, or working group and, when appropriate obtain committee agreement to have DoW needs accommodated in the document by inclusion, reference, or other suitable means. However, participants should make every effort to accept the NGS as written without DoW-unique modification, rather than trying to militarize the document.
  - At times, it may be necessary to seek inclusion of a "when specified" paragraph to accommodate DoW requirements without adversely affecting other uses of the document. This inclusion makes the document more readily adoptable by DoW and minimizes the need for issuing government documents invoking changes to the NGS for DoW use. When necessary, an addendum to the NGS may be included to ensure that DoW needs are accommodated.

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- Encourage development of performance standards.
  - Whenever appropriate, the development of performance standards should be encouraged. Performance criteria in standards generally do not stand in the way of innovation, whereas prescriptive requirements tend to do so. References to patented devices, materials, or processes may deter technical progress, and some NGSBs may prohibit their inclusion.
- Participate actively.
  - When serving as a member of an NGSB, DoW representatives should participate actively and on an equal basis with other members, consistent with the procedures of that body, particularly in matters such as establishing priorities; developing procedures for preparing, reviewing, and approving standards; and developing or adopting new standards.
  - Participants should attend regularly, be early, position themselves, network, observe, be attentive, introduce themselves, be courteous, know the rules, be prepared, contribute, listen, negotiate, know the standard, do the homework, know the agenda, be proactive, volunteer, and know the product and marketplace.
  - Participants should be mentally prepared to deal with adversarial people who may attack with persistent questions, unfounded accusations, or misinformation.
  - Active participation includes being fully involved in discussions and technical debates, registering opinions, and, if selected, serving as chairperson or in other official capacities.
  - Participation may involve a combination of face-to-face meetings, teleconferences, video chats, and email. No matter what the meeting venue, participants should dress according to the organization's "dress code."
- Vote and be an advocate.
  - Participants may vote at each stage of standards development and on actions arising in the normal course of participation in NGSBs. Participants may vote in accordance with the procedures of the NGSB, unless prohibited from doing so by law or agency. However, participants should abstain when there is a conflict of interest for DoW or its representatives.
- Seek consensus.
  - Participants should seek support for DoW's position among the other members of the group. Success may require knowing the other representatives and finding additional reasons for them to support DoW's position.
- Do not dominate.
  - DoW representatives must not dominate NGSB activities. They must comply with the NGSB rules and procedures, including those regarding domination of proceedings by any individual. In addition, DoW participants must avoid the practice or the appearance of undue influence relating to DoW representation and activities in the NGSB.
- Know your position does not bind DoW.
  - Participation and voting by a DoW representative during the formulation of a document may not be considered to bind DoW to any present or future course of action or to imply compliance or concurrence by the government.
  - Although the express purpose of DoW representation is to enhance the adoption potential of an NGS, the actual adoption process is separate and distinct; documents prepared by groups with DoW representation may be rejected in the adoption process.
- Be prepared.
  - Participants must know their subject matter and, when applicable, the DoW position, as well as what they want and when to weigh in. In addition, they should set goals and have a few alternatives in mind.
  - Participants should learn and understand the jargon and technical acronyms of the NGSB's technical committees.

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- Participants should be willing to take training in both NGSB organizational procedures and processes as well as technical courses.
- Participants should also maintain a file of committee-related information including committee's by-laws, membership lists, final ballots, relevant correspondence, and meeting minutes.

- Know and follow Robert's Rules of Order.
  - Many NGSBs use Robert's Rules of Order. To be effective, participants should become familiar with these common practices. ANSI and several NGSBs periodically offer a training course on effective participation as well as on specific operating procedures. For reference to the rules see https://robertsrules.org.
- Seek leadership positions.
  - Participants should accept leadership of a project or agree to represent the group to another standards body. Doing so improves credibility and demonstrates leadership.
  - Leadership positions require technical skills, familiarity with market politics, knowledge of the NGSB's policies and procedures, the ability to listen and summarize, and negotiation talent.
- Refrain from involvement in NGSB internal management.
  - To maintain NGSBs as independent, private, and non-government bodies, DoW representatives must refrain from decision-making involvement in the internal day-to-day management of such organizations (e.g., selection of salaried officers and employees, establishment of staff salaries, and administrative policies).
  - DoW representatives may participate in the policymaking process of the NGSB, particularly in matters such as establishing priorities; developing procedures for preparing, reviewing, and approving standards; and approving standards; and creating NGSs.
- Be aware of security concerns.
  - Participants who participate in NGSBs should request tailored briefings, training, or guidance from their security office for navigating any potential threats associated with information gathering from foreign entities.
  - Participants active in NGSBs should be mindful of elicitation techniques from foreign entities and not disclose any sensitive information. DoW personnel who are questioned beyond normal curiosity or who believe they are being targeted as an intelligence source, should back off as graciously as possible and report the incident to their security office upon their return.
- Be ethical.
  - Participation in standards development activities almost certainly involves working with representatives of the private sector, which imposes numerous responsibilities, ethical obligations, and possible antitrust considerations. Federal employees are subject to constraints on conduct that may not apply to private sector counterparts. Many groups have social dimensions that help pull the group together. Issues are more easily resolved at the dinner table than at the conference table. Be aware that hosted events raise ethical issues.
  - Participants should associate with members before, during, and after the meetings; keep in touch; take advantage of opportunities; and have a good time but must also be careful not to violate ethics rules. DoW participants must behave consistent with the policies of DoW Directive 5500.7, *Ethics and Standards of Conduct*.
    - Avoid situations that are or may appear to be breaking antitrust laws.
    - Prevent donations to outside parties of expenses prohibited by your agency.
    - Prevent excessive travel, room, and per diem expenses.
    - Avoid the appearance of using public office for private gain.
    - Avoid the appearance of giving preferential treatment to any organization or person.

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- Avoid the appearance of making a government decision outside of official channels.
- Keep your management and interested parties informed.

- Supervisors must be kept informed of significant developments, both technical and policy, that occur at committee meetings.
- Participants also should communicate information about new or modified standards throughout the organization and elsewhere in DoW when affected parties may have a need to know about the standards.

4.5 Funding Participation

To support ongoing activities, most NGSBs require all participants, industry and government alike, to pay a fee for taking part in the document development process. In accordance with the provisions of OMB Circular A-119, DoW individuals who participate at DoW expense do so as representatives of DoW or their DoW activity.

A prior legal interpretation of 5 U.S.C. § 5946, "Membership fees; expenses of attendance at meetings; limitations," dated 1912, prohibited the use of appropriated funds to pay for membership fees or dues. To clarify the intent of the 1912 law, Congress included in Section 1115 of the *National Defense Authorization Act for Fiscal Year 2002* (S.1438) a statement that the 1912 law does not apply when an employee is participating in agency-related standards activities.

In some instances, a DoW activity (e.g., command, base, station) is required to pay organizational or individual NGSB fees to help offset administrative costs of participation. While policy prohibits paying individual membership fees, it may be permissible to pay appropriate administrative fees to cover the costs of authorized DoW liaison representative participation. DoDM 4120.24 indicates that when DoW pays administrative fees for individual representatives, DoW retains the right to substitute alternate personnel. Even though an individual may be named as a regular participant and receive benefits of participation, the fee has been paid by the DoW activity to have a representative involved in NGS efforts. The DoW activity reserves the right to designate the individual who can most appropriately represent DoW's interests and position in NGS efforts. Any benefits of participation accrue to the activity rather than the individual representative. There are no stipulations in either policy or law precluding a DoW employee from joining and participating in any NGSB at his or her own expense.

4.6 Organizational Membership

Sometimes it is in DoW's best interest to acquire organizational memberships in an NGSB. DoW organizations may seek membership in an NGSB at an activity, service, agency, or DoW level, depending on their particular requirements. In making membership decisions, the organization should consider the benefits to DoW such as free or discount publications, technical reports, voting privileges, and participation on planning boards.

4.7 DoW Support to Non-Government Standards Bodies

The total amount of DoW support to an NGSB should be no greater than that of equivalent private-sector participants in that activity, except when it is in the best interest of DoW to develop or revise a standard and when its development or revision is unlikely to occur without DoW support. DoW support, subject to legal and budgetary authority, may include the following:

- Direct financial support (e.g., memberships or contracts)
- Administrative support (e.g., travel costs, hosting of meetings, or secretarial functions)

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- Technical support (e.g., cooperative testing for standards evaluation or participation of DoW personnel in the activities of standards development groups)
- Joint planning with NGSBs to facilitate a coordinated effort in identifying and developing needed standards
- Participation of DoW or contractor personnel in standards activities.

DoW official participation on NGSBs does not connote DoW agreement with or endorsement of decisions reached by such bodies or of the standards approved and published by the NGSBs. However, official DoW participation provides an inherent constituency for NGS adoption because the DoW representative who participates in the NGSB process is normally the DoW coordinator for the adoption process.

DoW policy and guidance governing DoW participation in NGSBs and adoption of NGSs are contained in DoDM 4120.24, Enclosure 9. Participants in NGSBs can access this document in ASSIST, and they should always refer to this resource for the definitive guidance on participation and NGS adoption.

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Section 5. Adopting a Non-Government Standard

5.1 What Is Adoption?

Adoption is the process by which DoW expresses formal acceptance of an NGS for use in direct procurement, as a reference in another document, or as guidance in the design, manufacturing, testing, or support of materiel. Adopted NGSs are not mandatory; DoW uses both adopted and unadopted NGSs. However, adoption is encouraged. A list of NGSBs from which DoW has adopted documents can be found in ASSIST.

5.2 Advantages of Adoption

Adopting an NGS document offers the following advantages:

- Adoption provides visibility for the document through its appearance in ASSIST. This visibility is of great value to DoW users since it can narrow the search for an acceptable standard from a very broad one to a much narrower one.
- Adoption provides a measure of confidence in the standard, because it suggests it is technically adequate to meet the needs of the Adopting Activity.
- The adoption notice identifies a DoW point of contact if there are questions or problems with the standard.
- The adoption notice can provide application and other use guidance to DoW personnel.

5.3 Adoption Criteria

Before adopting an NGS, review DoDM 4120.24, Enclosure 9 guidance and ensure the following questions are addressed:

- Does the NGS meet DoW's requirements? If yes, then the NGS should be adopted. It is important to remember that an adopted NGS is not a mandatory document; it is simply available for use by DoW activities. In some cases, the NGS may not fully meet DoW's requirements. It may be necessary to supplement the NGS to meet DoW requirements. Even though the NGS does not fully meet DoW's requirements, it should still be adopted if it will be referenced. Not all interested DoW activities must concur with an NGS for it to be adopted. An NGS can be adopted for use by only those DoW activities that concur in its use. If the NGS has too many deficiencies it should not be adopted.
- Are copies of the document readily available? Documents proposed for adoption should be readily available to DoW and its contractors. Adopted NGSs are divided into two tiers. A Tier I NGS is deemed to be of such importance that adoption must be reevaluated with each revision to the NGS. A Tier II NGS is not required to be reevaluated with each revision to the NGS. Unless designated as a Tier I NGS, existing adoption notices are considered to be Tier II.
- Has the NGS been approved by the NGSB? Do not adopt draft NGSs because requirements can change in response to comments during coordination.
- Does the NGS contain proprietary information that will require DoW or its contractors to pay royalty fees? If royalty fees are required, DoW must assess whether they are fair and reasonable before adopting the NGS.

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5.4 Adopting Activity Responsibilities

The Adopting Activity is the organization that chooses to adopt an NGS and accepts DoW responsibility for the document. Generally, the Adopting Activity also involves other activities in the adoption process, establishes a project to adopt the NGS, coordinates the NGS with interested parties, resolves DoW comments with the NGSB, prepares an adoption notice, submits the adoption notice to DSPAO and DoW, ensures ASSIST lists the adopted NGS, determines if the NGS should be classified as Tier I or Tier II, and withdraws adoption when necessary. The NGSB must be contacted to verify that the latest edition of the document continues to meet DoW requirements.

In addition to participating in the development of the NGS, the Adopting Activity has a responsibility to serve as the DoW technical focal point for the document and involve other interested parties, including Custodians and Review Activities, within DoW to keep them fully informed about the NGS at every stage.

DoW should adopt NGS that are for commercial products or processes. For definitive guidance on responsibilities, Adopting Activities should refer to DoDM 4120.24, Enclosure 9.

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Section 6. Replacing Government Documents with Non-Government Standards

DoW policy encourages replacing existing defense and federal standardization documents with NGS documents when it can be determined that an NGS meets the users' requirements.

A simple test for determining whether a government specification or standard is a good candidate to become an NGS is whether the commercial sector will use the resultant standard. If the answer is yes, then the government standard is a good candidate for conversion to an NGS. If the answer is no, then DoW has other alternatives to NGSs, including DoW performance specifications and commercial item descriptions.

Any effort to develop an NGS that is not for a commercial product or does not specify a process or practice that truly will be used industry-wide is discouraged. DoW should adopt NGSs that are for commercial products or processes. If industry develops an NGS for a canceled government document, DoW must ensure it has a valid internal need for the NGS before adopting it.

6.1 Inactivation or Cancellation

If a satisfactory NGS alternative exists, DoW should cancel or inactivate the government document. The adoption notice for the NGS and the notice for the inactive for new design or canceled government document must provide all applicable supersession, substitutability, or cross-reference information.

6.2 Qualification and Non-Government Standard Adoption

Sometimes, DoW adopts an NGS to replace a government specification that has an associated qualified products list or qualified manufacturers list. Canceling and replacing the government document forces the Adopting Activity to resolve the issue of how to deal with the qualification component. DoDM 4120.24 offers the following guidance:

- When an NGS meets both DoW and commercial industry needs, and when an industry-wide qualification activity can adequately ensure compliance with the NGS qualification requirements, DoW should adopt and use both the NGS and its associated qualification list.
- When an NGS includes qualification requirements and no industry qualification activity exists, but DoW has a qualification activity that can ensure compliance, DoW should adopt the NGS and use its qualification activity to support DoW acquisition.
- When an NGS includes qualification requirements but identifies a DoW activity as the designated qualifying activity without that activity's agreement, DoW should not adopt or use the NGS. DoW may establish a qualifying activity to support DoW acquisition; however, the NGS should not mandate a DoW qualifying activity.
- When an NGS does not include qualification requirements, but DoW has a justified need for qualification, DoW may issue a military document citing the NGS and establishing qualification requirements.

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Appendix A. Abbreviations

ANSI	American National Standards Institute
ASME	American Society of Mechanical Engineers
CID	commercial item descriptions
CIE	International Commission on Illumination
DoDM	Department of Defense Manual
DoW	Department of War
DSP	Defense Standardization Program
IATA	International Air Transport Association
IEC	International Electrotechnical Commission
IETF	Internet Engineering Task Force
ISO	International Organization for Standardization
NGS	non-government standards
NGSB	non-government standards bodies
NIST	National Institute of Standards and Technology
NTTAA	National Technology and Transfer and Advancement Act of 1995
OMG	Object Management Group
R&D	research and development
UL	Underwriters Laboratories
UN	United Nations
U.S.C.	United States Code
WTO	World Trade Organization

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